

A Strategic Analysis of Student Rights, Discrimination, and Institutional Obligations: Pathways to a Civil Suit Compromise

Part I: The Legal Landscape of Equality in Irish and UK Higher Education

A comprehensive understanding of the legal obligations governing higher education institutions in both the Republic of Ireland and Northern Ireland is fundamental to assessing any potential claim of discrimination. The legislative frameworks in both jurisdictions, while distinct, are built on common principles of equality, non-discrimination, and the duty to accommodate students with disabilities. This section establishes the legal standards against which the actions of Queen's University Belfast (QUB) must be measured.

1.1 The Irish Framework: The Equal Status Acts 2000-2018

In the Republic of Ireland, the cornerstone of equality law outside the workplace is the Equal Status Acts 2000-2018. These Acts prohibit discrimination in the provision of goods, services, accommodation, and, critically, education.¹ The legislation is expansive, covering nine protected grounds: gender, marital status, family status, age, disability, sexual orientation, race, religion, and membership of the Traveller community.¹

Section 7 of the Equal Status Act, 2000, explicitly defines an "educational establishment" to include universities and any other third-level or higher-level institution.³ This provision brings universities squarely within the ambit of the Acts, making them legally accountable for discrimination in relation to the admission of students, a student's access to any course, facility, or benefit provided by the establishment, and any other term or condition of participation.³ The scope is broad, covering the entire student lifecycle from application to graduation.

For a deeper understanding of the practical application of these laws, legal texts such as *Equal Status Acts 2000-2011: Discrimination in the Provision of Goods and Services*, commissioned by the Irish Council for Civil Liberties (ICCL), provide comprehensive analysis of

case law and enforcement mechanisms.⁴ Such resources, available through university libraries like the James Hardiman Library, are essential for interpreting how these statutory duties are enforced in practice. The principles of the Acts have been further embedded into institutional governance through the Higher Education Authority Act 2022, which now requires designated institutions to prepare and implement a detailed "equality statement" outlining their policies for access and equality.⁵

1.2 The Northern Irish Framework: Equality Law and University Obligations

In Northern Ireland, the legal framework for equality is similarly robust, shaped by its unique social and political history. Public authorities, including universities like QUB, are subject to powerful statutory duties. Section 75 of the Northern Ireland Act 1998 is paramount, placing a legal obligation on public bodies to have "due regard to the need to promote equality of opportunity" between persons of different religious belief, political opinion, racial group, age, marital status, and sexual orientation, as well as between men and women generally, and between persons with a disability and persons without.⁶

This duty is proactive, requiring institutions not merely to avoid discrimination but to actively promote equality. Other key statutes include the Fair Employment and Treatment (NI) Order 1998.⁷ The protected characteristics of religious belief, political opinion, and ethnic origin are particularly salient in the context of a student with a dual Irish/British national identity, alongside the protected characteristic of disability.⁶

Queen's University Belfast formally acknowledges these extensive legal duties in its "Equality, Diversity and Inclusion Policy (2020)".⁷ This policy document serves as the university's own statement of compliance and commitment, making it a critical reference point for assessing whether its actions have met its self-professed standards.

1.3 The Duty of Reasonable Accommodation for Students with Disabilities

A central pillar of equality law in both jurisdictions is the duty to provide "reasonable accommodation" for individuals with disabilities. This duty requires institutions to take positive steps to remove barriers that would otherwise prevent a disabled person from participating on an equal footing.

In the Irish context, the Equal Status Acts require service providers, including universities, to provide special treatment or facilities where, without them, it would be "impossible or unduly difficult" for a person with a disability to avail of the service.¹ This duty is qualified by the condition that it must not cost more than a "nominal cost".¹ The term "nominal cost" is deliberately relative; its interpretation depends on the circumstances of the case, including

the size and, crucially, the resources of the body involved.¹ For a large, well-funded university, the threshold for what constitutes more than a nominal cost is exceptionally high. The legal standard in Northern Ireland is framed in similar terms, requiring institutions to make reasonable adjustments to prevent a disabled student from being placed at a "substantial disadvantage." This could involve changing policies, altering physical features, or providing auxiliary aids.¹⁰ The key consideration is the reasonableness of the adjustment. Precedent from cases settled by QUB with the support of the Equality Commission for Northern Ireland (ECNI) shows that a failure to provide timely and effective reasonable adjustments has been a recurring issue leading to significant financial settlements.¹⁰ In practice, reasonable accommodations in a university setting can include a wide array of supports, such as providing assistive technology software and hardware, funding for non-medical helpers like personal assistants and notetakers, access to academic support tutors, provision of course materials in accessible formats, and flexibility in course schedules or placements.¹⁰

1.4 Proving Discrimination: Legal Tests and Burdens of Proof

To succeed in a claim, a complainant must understand the legal definitions of discrimination and the procedural rules governing the burden of proof.

Discrimination can be direct or indirect. **Direct discrimination** is the less favourable treatment of a person compared to another in a similar situation, based on one of the prohibited grounds.⁷

Indirect discrimination, a more subtle but equally unlawful concept, occurs where a provision, criterion, or practice that appears neutral on its face puts people who share a protected characteristic at a particular disadvantage compared with others.⁷ This is a powerful tool for challenging institutional policies that, while not intentionally discriminatory, have a disproportionately negative impact on certain groups.

The legislation also prohibits **harassment**, defined as unwanted conduct related to a protected ground that has the purpose or effect of violating a person's dignity or creating an intimidating, hostile, degrading, humiliating, or offensive environment.¹

Victimisation is also unlawful and occurs when a person is treated less favourably because they have made, or intend to make, a complaint under the equality legislation, or have supported another person in doing so.¹

A significant strategic element in equality litigation is the shifting burden of proof. In Ireland, once a complainant establishes facts from which it may be presumed that prohibited conduct has occurred, it is for the respondent (the university) to prove the contrary.¹⁵ This reversal of the standard evidentiary burden means that if a prima facie case is established, the university must actively disprove the allegation of discrimination rather than the complainant having to prove it conclusively.

The legal frameworks in both jurisdictions create a high bar for universities. The standard of "reasonable accommodation" is directly linked to an institution's resources. For a globally

recognised, research-intensive university, arguing that providing comprehensive support represents more than a "nominal cost" or an "unreasonable" burden is a difficult position to sustain. This connection between an institution's elite status and its legal duties is a central theme in this analysis. A student with ties to both Ireland and the UK is uniquely positioned to benchmark the actions of a NI university against the robust standards and support models available in the Republic of Ireland, transforming a domestic dispute into a cross-border comparison of rights and best practices.

Table 1: Comparative Overview of Equality Legislation (Ireland vs. Northern Ireland)

Feature	Republic of Ireland	Northern Ireland
Primary Legislation	Equal Status Acts 2000-2018	NI Act 1998 (s75), Disability Discrimination Act 1995, FETO 1998
Protected Grounds	Gender, marital status, family status, age, disability, sexual orientation, race, religion, Traveller community	Religious belief, political opinion, racial group, age, marital status, sexual orientation, gender, disability
Reasonable Accommodation Standard	Provide where needed, unless it costs more than a "nominal cost"	Make "reasonable adjustments" to prevent "substantial disadvantage"
Key University Duty	Not to discriminate in admission, access to facilities, or any term of participation	Proactive duty to promote equality of opportunity (s75); not to discriminate
Enforcement Body	Irish Human Rights and Equality Commission (IHREC)	Equality Commission for Northern Ireland (ECNI)

Part II: Institutional Analysis: Queen's University Belfast

To formulate a successful compromise strategy, it is imperative to analyze Queen's University Belfast not just through its policies, but as a complex institution with a distinct brand, culture, and history. Understanding its reputational sensitivities, past conduct, and the unique societal context in which it operates reveals critical pressure points that can be leveraged in a negotiation.

2.1 Institutional Profile: A Russell Group University in a Post-Conflict Society

Queen's University Belfast is one of 24 members of the Russell Group, a self-selected association of the UK's leading public research universities.¹⁶ This membership is central to QUB's identity and global standing. It signifies academic excellence, attracts a significant share of UK research grant income, and produces graduates who are highly sought after by employers.¹⁶ The Russell Group brand implies a high level of resources, world-class facilities, and a commitment to providing an exceptional student experience.¹⁸

This elite status, however, is a double-edged sword. The Russell Group as a whole is sensitive to public criticism, particularly around accusations of elitism and a failure to widen access for students from diverse backgrounds.¹⁶ A high-profile discrimination lawsuit, especially one that touches upon disability and complex national identity, poses a direct threat to this carefully curated brand of inclusive excellence. It does not merely attack QUB; it has the potential to embarrass the entire Russell Group by suggesting that one of its members has failed to uphold the standards it proclaims. This elevates the potential dispute from a local legal matter to a national reputational risk, fundamentally altering the strategic calculus for the university. Compounding this is QUB's location in the post-conflict society of Northern Ireland. Identity—whether political, religious, or national—is an exceptionally salient and sensitive issue. Research from QUB's own academics highlights the persistent challenges of sectarianism and the exclusion of non-dominant minority groups within the region's power-sharing structures.²¹ This context makes any allegation of discrimination based on Irish identity particularly volatile for the university.

2.2 Internal Policies and Precedents on Discrimination and Harassment

QUB's formal policies present a strong commitment to equality. The "Equality, Diversity and Inclusion Policy (2020)" asserts a "zero-tolerance approach to all bullying and harassment" and explicitly opposes all forms of unlawful discrimination on grounds including disability, race, religious belief, and political opinion.⁷ The policy outlines a formal Student Complaints Procedure for those who believe they have been subjected to such treatment.⁷

However, a critical examination of the university's recent conduct reveals a potential gap between stated policy and actual practice. In recent years, QUB has settled multiple disability discrimination cases brought with the support of the Equality Commission for Northern Ireland (ECNI), making substantial payments while not admitting liability. These include:

- A **£20,000 settlement** to a former midwifery student with Cystic Fibrosis who alleged the university failed to provide clear and timely reasonable adjustments, forcing her to withdraw from her course.¹⁰
- A **£25,000 settlement** to a former nursing student with a cancer diagnosis who had to withdraw after the university failed to provide a suitable placement in line with its own occupational health recommendations and could not offer a flexible schedule.¹¹

This pattern is strategically significant. It establishes that QUB has a history of preferring to

settle such claims confidentially rather than face public litigation, particularly when the ECNI is involved. It suggests a recurring institutional failure to translate "zero-tolerance" policy into effective, on-the-ground support for disabled students. This history of precedent provides a powerful lever in any negotiation, as it demonstrates the university's known vulnerability and preferred resolution pathway.

2.3 The Student Experience: Navigating Complex Identities at QUB

The lived experience of students at QUB is shaped by the wider societal context of Northern Ireland. Decades of academic research have documented the pervasive nature of sectarianism and its impact on young people, who learn to navigate a divided world from a young age.²³ The societal framework is often constructed around a binary of Protestant/Unionist and Catholic/Nationalist identities.²⁶

This binary can create a challenging environment for individuals whose identities are more complex or do not fit neatly into one category. Research from QUB's Senator George J. Mitchell Institute explores how newcomers and "others" are imagined and positioned within this dominant sectarian framework.²⁷ A student with a dual Irish/British nationality represents precisely such a complex identity. They may face a systemic "blind spot"—an institutional inability to understand and cater to an identity that transcends the traditional binary. This failure may not stem from overt malice, but from systems and support structures implicitly designed to accommodate two primary communities, thereby indirectly discriminating against those who fall outside them.

While QUB has structures to engage with Irish culture, such as its prestigious Institute of Irish Studies and popular summer schools²⁸, this can stand in contrast to the lived experience of students who feel their specific, nuanced identity is not adequately supported by the university's broader administrative and welfare systems.³⁰

2.4 Potential Grounds for Complaint: A Synthesis for a Dual National with a Disability

Based on this analysis, a potential claim against QUB would rest on two powerful, intersecting pillars:

1. **Disability Discrimination:** A clear and evidence-based claim of a failure to provide timely and effective reasonable accommodations. This would be substantiated by comparing the support provided (or not provided) by QUB against its own significant financial resources, its legal obligations under NI law, and the clear precedents set by the £20,000 and £25,000 settlements in similar cases.¹⁰
2. **Indirect Discrimination on Grounds of Race/Political Opinion:** A more nuanced but potent argument that the university's systems, shaped by the NI context, failed to adequately support a student with a complex dual nationality. The argument would be

that the university's support mechanisms, geared towards a bicultural environment, inadvertently disadvantage someone with a dual-cultural identity. This failure to understand and accommodate complexity could be framed as indirect discrimination, shifting the focus from individual prejudice to systemic institutional failure, which is often more difficult for a large organization to defend.

Part III: Institutional Analysis: University of Galway

To effectively argue that Queen's University Belfast failed in its duty of care, it is crucial to establish a benchmark of what a reasonable and well-resourced peer institution provides. The University of Galway (UoG) serves as an ideal comparator due to its shared history with QUB, its comparable status as a major research university, and its well-documented, multi-layered system of student support. This section details UoG's structures not as a party to the dispute, but as a model of the "reasonable standard" against which QUB's alleged failures can be measured.

3.1 Institutional Profile: History, Funding, and Support Structures

The University of Galway has undergone a significant transformation over the past two decades, largely driven by the Programme for Research in Third-Level Institutions (PRTL).³¹ Described as a "quantum leap" for the Irish knowledge economy, the PRTL was a massive co-investment by the Irish Government and private philanthropy, notably Atlantic Philanthropies, which injected over €1.1 billion into the sector.³¹ This program enabled Irish universities to build state-of-the-art research infrastructure and embed a culture of strategic research planning.³²

University of Galway was a "big winner" in this initiative, securing over €60 million in PRTL Cycle 5 alone.³⁴ This funding supported the construction of world-class facilities, including the €15 million Hardiman Research Building, which houses the Moore and Whitaker Institutes and was partially funded by PRTL.³⁴ This history of strategic investment is crucial; it establishes UoG as a modern, well-funded institution with a capacity for excellence that is directly comparable to a Russell Group university like QUB. It counters any potential argument that the support systems at UoG are an unaffordable outlier, proving instead that they are an integral part of what a modern, research-led university is expected to provide. This is reinforced by the university's public commitment to equality of opportunity for all students, including those with disabilities.³⁷

3.2 A Model of Support: The Disability Support Service and the Fund for Students with Disabilities (FSD)

The support for disabled students at UoG operates within a robust national and institutional framework.

At the national level, the **Fund for Students with Disabilities (FSD)** assists higher education institutions in providing necessary assistance and equipment.¹³ The FSD covers a wide range of supports, including assistive technology, non-medical helpers (e.g., personal assistants), academic support, and transport.¹³ Critically, the funding is allocated directly to the college, not the individual student, placing the responsibility for managing and delivering these supports squarely on the institution.¹³

At the institutional level, UoG's **Disability Support Service (DSS)** provides a clear, transparent, and structured pathway for students to access support. The process involves three key steps:

1. **Application:** Students with evidence of a disability, ongoing health condition, or specific learning difficulty can apply to the DSS.³⁸ The range of accepted diagnoses is comprehensive, covering physical, mental, neurological, and learning-related conditions.³⁹
2. **Needs Assessment:** Upon application, a member of the DSS team conducts a professional needs assessment to determine the specific and appropriate supports required by the student, based on the nature of their disability and the demands of their academic course.³⁸
3. **LENS Report:** The outcome of the assessment is formalized in a **Learning and Educational Needs Summary (LENS)** report. This document details the agreed-upon reasonable accommodations and is shared with the student and their relevant academic school or discipline, ensuring that all parties are aware of the support plan.³⁸

This structured process—from national funding to individualized assessment and a formal, shared plan—stands as a model of best practice. It is proactive, transparent, and student-centered. Furthermore, UoG provides comprehensive mental health supports, including specific resources for conditions like anxiety (e.g., the 'Worry Tree' app, Silvercloud online CBT) and a wide range of free and low-cost counselling services that can address issues such as PTSD.⁴⁰ This is complemented by a Financial Aid Fund to assist students in hardship with living costs, demonstrating a holistic approach to removing barriers to participation.⁴¹

3.3 The James Hardiman Library: A Strategic Resource for Redress

The James Hardiman Library at UoG is not merely a repository of books but a central hub for student support and a strategic resource for this case.

The library hosts a dedicated **Assistive Technology Area**, operated in collaboration with the DSS.¹² This area provides students with access to specialized software like Dragon Naturally Speaking (voice recognition), JAWS (screen reader), and ZoomText (magnification), as well as

hardware such as book scanners, magnifiers, and sound-proof study booths.¹² It also facilitates access to vast digital libraries of accessible texts, such as NCBI Bookshare.¹² This physical and digital infrastructure demonstrates a profound institutional commitment to embedding disability support within the core academic environment.

Beyond its support functions, the library is a **legal deposit library**, meaning it is entitled to a copy of every work published in Ireland.⁴² Its collections therefore contain key legal texts, legislation, and case law relevant to equality rights.⁴³ Most significantly, it is the home of the **Professor Kevin Boyle archive**, a major collection for the study of human rights that directly links to QUB and the Northern Ireland Civil Rights Movement.⁴⁴ The library itself is thus a powerful tool for the user, providing both the evidence of best practice in disability support and the archival materials needed to build a case grounded in human rights advocacy.

Table 2: Disability Support & Funding Comparison (UoG vs. QUB)

Support Feature	University of Galway (Evidence)	Queen's University Belfast (Evidence/To be determined)
Central Gov't Fund	Fund for Students with Disabilities (FSD) provides dedicated funding to the institution for student support. ¹³	To be determined (NI equivalent funding streams).
Institutional Support Service	Centralised Disability Support Service (DSS) with clear application and assessment process. ³⁸	Disability Services office exists, but effectiveness is questioned by precedent cases. ¹⁰
Needs Assessment Process	Formal Needs Assessment leading to a documented LENS (Learning and Educational Needs Summary) report shared with academic staff. ³⁸	Alleged failure to implement occupational health recommendations and provide clear adjustments. ¹⁰
Assistive Tech in Library	Dedicated Assistive Technology Area with specialized software (Dragon, JAWS), hardware, and sound-proof booths. ¹²	To be determined.
Mental Health for Anxiety/PTSD	Specific apps ('Worry Tree') and programs (Silvercloud CBT) for anxiety; multiple free/low-cost counselling options for general support. ⁴⁰	To be determined.

Part IV: The Inter-Institutional Relationship and its

Strategic Implications

The historical and symbolic connections between Queen's University Belfast and the University of Galway are not mere historical footnotes; they are strategic assets that can be used to frame a unique and compelling case for a restorative compromise. By weaving this shared narrative into the dispute, the matter can be elevated from a standard adversarial claim to an opportunity for two leading institutions to build a modern bridge founded on their common heritage.

4.1 A Shared Heritage: From Queen's Colleges to Separate Entities

The origins of both universities are deeply intertwined. They were founded simultaneously by Royal Charter in 1845 as constituent parts of the Queen's University in Ireland.¹⁷ Queen's College, Belfast, and Queen's College, Galway, were established as sister institutions with a common purpose: to provide a non-denominational alternative to the Anglican-controlled Trinity College Dublin.⁴⁵ For over six decades, they operated within this single university structure.

The pivotal moment of separation came with the Irish Universities Act of 1908. This legislation dissolved the overarching Queen's University system and created two new, independent entities: The Queen's University of Belfast and the National University of Ireland, of which Galway became a constituent college.⁴⁵ While this act set the two institutions on separate paths, their common foundation remains an undeniable historical fact. This shared origin story provides a powerful narrative hook. It allows a legal dispute involving a student with connections to both jurisdictions to be framed not as a conflict between two unrelated entities, but as an internal matter between two estranged siblings. This framing encourages a more collaborative and less adversarial approach to resolution, presenting an opportunity to reaffirm their historical links in a positive, contemporary context.

4.2 The Professor Kevin Boyle Archive: A Bridge Between Institutions and a Legacy of Rights Advocacy

The life and work of the late Professor Kevin Boyle provide a profound and tangible link between QUB and UoG. His career trajectory literally and figuratively bridges the two institutions. He began his seminal work as a scholar-activist in the Northern Ireland Civil Rights Movement while at Queen's University Belfast.⁴⁴ Later in his career, he moved to University College Galway (now UoG), where he was instrumental in developing the Law Department and co-founded the Irish Centre for Human Rights in 1980.⁴⁴

The Professor Kevin Boyle archive, now catalogued and housed at the James Hardiman

Library in Galway, stands as a testament to this shared legacy.⁴⁴ Comprising over one hundred boxes, the archive is a major international resource for the study of human rights.⁴⁴ It contains primary source documents of immense significance, including minutes from the Northern Ireland Civil Rights Association and People's Democracy, personal correspondence with key activists like Bernadette McAliskey, and records of landmark cases Boyle argued before the European Court of Human Rights concerning events in Northern Ireland.⁴⁸

This archive is more than a collection of papers; it is a symbol of a lifelong struggle for justice and equality that connects Belfast and Galway. It represents a powerful, positive legacy that can be invoked in settlement negotiations. A proposal for compromise can be crafted that not only seeks redress for the individual but also honors this legacy. By weaponizing this shared history, a settlement can be proposed that is restorative rather than purely punitive. For instance, a demand could be made for QUB to fund a "Kevin Boyle Memorial Scholarship" for a disabled student from Northern Ireland to study human rights at the University of Galway, or to fund a joint research project between the two universities on disability rights in post-conflict societies. This reframes the settlement from an admission of failure into a constructive, forward-looking partnership. Such a proposal is often far more palatable to an institution's leadership and public relations department than a simple payment of damages, making a comprehensive and favorable settlement more likely.

Part V: Strategic Pathways for Compromise and Redress

The final stage of this analysis synthesizes the legal, institutional, and historical findings into a set of actionable strategies for achieving a favorable compromise. This involves identifying institutional pressure points, evaluating procedural options, and crafting a multi-layered settlement proposal that addresses both individual harm and systemic failures.

5.1 Leveraging Institutional Vulnerabilities and Strengths

A successful negotiation strategy depends on a clear-eyed assessment of the opposing party's weaknesses and one's own strengths.

QUB's Pressure Points:

- **Reputational Risk:** As a Russell Group university, QUB's brand is its most valuable asset and its greatest vulnerability. A public discrimination lawsuit threatens this brand, especially given existing criticisms of the group's record on inclusivity.¹⁶
- **Legal Precedent:** The university has a documented history of settling disability discrimination claims for significant sums (£20,000 and £25,000) when faced with legal action supported by the ECNI.¹⁰ This demonstrates a clear preference for avoiding litigation.

- **Political Sensitivity:** An allegation of discrimination against a student with a dual Irish/British identity is politically charged in the Northern Ireland context, creating a risk of negative media attention and political scrutiny.
- **Financial Resources:** QUB's substantial annual income (over £474 million in 2023/24) makes it exceedingly difficult to argue that providing comprehensive support would constitute an unreasonable financial burden.¹⁷

The Strength of the UoG Benchmark:

The comprehensive, structured, and well-funded support system at the University of Galway serves as a powerful "gold standard".¹² It provides a concrete, evidence-based benchmark for what constitutes "reasonable" accommodation at a comparable university. This shifts the argument from an abstract claim of "inadequate support" to a specific, demonstrable failure by QUB to meet the standard set by a peer institution with which it shares a common origin.

5.2 Formal Grievance Procedures vs. Legal Action

An important strategic decision is whether to engage with the university's internal complaints process before initiating external legal action. Both UoG and QUB have formal, multi-stage student complaint procedures.⁷

Table 3: Analysis of Formal Student Complaint Procedures (UoG vs. QUB)

Procedural Step	University of Galway (QA611 Procedure)	Queen's University Belfast (Student Complaints Procedure)
Informal Resolution	Encouraged as Stage 1, directly with staff/Head of School. ⁵²	Implied, but formal process is the primary route outlined in policy. ⁷
Formal Submission	To the Dean of Students using a specific complaint form. ⁵²	To the Directorate of Academic and Student Affairs. ⁷
Investigation Body	University Complaints Board. ⁵²	Handled by relevant university directorates; disciplinary action if founded. ⁷
Appeal Process	Appeal of Board's decision to a final Appeals Board on specific grounds. ⁵²	The Student Complaints Procedure is the final internal stage; disciplinary outcomes may have separate appeals.
Typical Timelines	Specified timelines (e.g., 5 days for acknowledgement, 15 for initial assessment, 30 for Board decision). ⁵²	Complaints dealt with "promptly," but specific timelines not as clearly defined in available policy documents. ⁷

While internal procedures exist, their efficacy can be limited, and they can be time-consuming. Given QUB's history of responding to external legal threats backed by the

ECNI, a more powerful strategy may be to bypass the internal process and proceed directly to a formal legal letter outlining the grounds for a civil suit. This approach immediately escalates the matter to the university's legal and executive level, where strategic decisions about risk and settlement are made. The strong recommendation is to secure the support of the Equality Commission for Northern Ireland, whose involvement was instrumental in previous successful settlements.¹⁰

5.3 Crafting a Compromise: Recommendations for a Potential Civil Suit Settlement

A negotiation focused solely on financial compensation can easily stall. A more effective approach is to present a multi-pronged settlement proposal that offers the university multiple ways to resolve the dispute, addressing its financial, regulatory, and reputational needs.

Recommended Settlement Terms:

1. **Monetary Compensation:** A claim for damages covering injury to feelings, distress, and any quantifiable financial losses incurred as a result of the alleged discrimination. Based on the precedents set by the Bradshaw (£25,000) and Walker (£20,000) cases, a figure in this range would be a reasonable starting point for negotiation.¹⁰
2. **Policy and Practice Reform:** A non-negotiable demand that QUB undertakes a comprehensive review of its policies and practices related to disability support and the accommodation of students with complex national identities. As in prior settlements, this review should be conducted in liaison with and subject to the approval of the ECNI to ensure it is robust and effective.¹⁰
3. **Non-Monetary & Restorative Remedies (The "Boyle Bridge" Initiative):** This creative component allows QUB to frame the settlement as a positive, forward-looking action rather than a simple defeat. The proposal should include a QUB-funded initiative that honors the legacy of Professor Kevin Boyle and the shared history of the two universities. Options include:
 - The establishment of a "Kevin Boyle Memorial Scholarship" or travel bursary, funded by QUB, to support a student with a disability from Northern Ireland studying human rights at the University of Galway.
 - Funding for a joint QUB-UoG academic conference or research project on disability rights, equality, and identity in post-conflict societies.
 - A commitment from QUB to provide funding to the James Hardiman Library to support the digitization and enhanced accessibility of the parts of the Kevin Boyle archive dealing with discrimination and civil rights.
4. **Formal Apology:** While past settlements included an apology for "distress" without admitting liability, the strength of the combined claims may allow for a demand for a more substantive and public acknowledgment of the university's failings.

This layered approach provides the university with a pathway to resolution that manages its various risks. It can privately agree to the financial compensation and policy review to satisfy

its legal and regulatory obligations, while publicly highlighting the prestigious "Boyle Bridge Initiative" to manage its reputation and present the outcome as a constructive partnership. This significantly increases the probability of achieving a comprehensive and satisfactory compromise.

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